

## Shiv Pratap Singh @ Chhotu v. State of U.P. and others

High Court of Judicature at Allahabad · Division Bench · 27 May 2022 · Writ-C No. 11648 of 2022 · **Writ disposed; petitioner relegated to a clause 6.5 objection with time-bound decision and interim stay of coercive recovery.**

### HEADNOTE

A writ seeking quashing of a recovery certificate for electricity dues and a mandamus to decide liability was disposed without merits. The consumer was given liberty to file an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005, to be decided within a fixed period after hearing, with no coercive action in the meantime.

### FACTUAL SUMMARY

The petitioner challenged a recovery certificate dated 24 July 2019 for Rs. 4,13,844 issued by respondent no. 2, and sought a mandamus directing the power distribution corporation (respondent no. 4) to consider and decide his liability to pay electricity charges. Counsel for the corporation stated on instructions that the petitioner may file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

### HOLDING-UNITS

#### HOLDING-UNIT · UP-2005::6.5

disputed electricity demand — clause 6.5 objection as alternate remedy

#### HOLDING

Without expressing any opinion on merits, the writ was disposed with liberty to the petitioner to submit an objection under Para 6.5 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks. If so submitted, the objection shall be decided in accordance with law within the next four weeks after reasonable opportunity of hearing. No coercive action on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

### PRINCIPLE TAGS

**clause-6.5-alternate-remedy-to-writ** The writ against a recovery certificate for electricity dues was not decided on merits; the consumer was relegated to an objection under Para 6.5 before the licensee. ¶ 1

**clause-6.5-statutory-remedy-disputed-bill** The statutory route for contesting the impugned electricity demand was an objection under Para 6.5, to be decided in a time-bound manner after hearing, with interim protection against coercive recovery. ¶ 1

### NOT DECIDED — NEGATIVE AUTHORITY

#### NOT DECIDED — CORRECTNESS OF THE RECOVERY CERTIFICATE DATED 24 JULY 2019 AND THE PETITIONER'S LIABILITY FOR THE ELECTRICITY CHARGES

Court expressly declined to express any opinion on merits. ¶ 1